



State Controller's Office - Public Records Act Request - HERE Lab - Andrew Martin

From Chow, Kimberley <KChow@sco.ca.gov>

Date Wed 7/3/2024 1:47 PM

To Andrew Martin <amartin462@ucmerced.edu>

Hello Mr. Martin,

The State Controller's Office is in receipt of your Public Records Act request, received on June 27, 2024. I will be assisting you with the processing of your request. Upon review of your request, our office have identified several responsive records. There will be no cost for the production of the records and I anticipate that the documents can be provided to you within 4-5 weeks.

I have indicated below which request our office have responsive documents for. Please note that for some of the requests, our office was not able to locate any responsive documents. For those items where we need more time to search for documents, I will update you as soon as I have more information regarding those items.

1. Any records pertaining to the participation of private educational institutions in the Franchise Tax Board (FTB) Interagency Intercept Collection Program (IIC), including but not limited to records of private educational institutions successful or unsuccessful FTB 2080 PC Intent to Participate, FTB 7904 Vendor/Contractor Confidentiality Agreement, and sample pre-intercept notices from any private educational institutions.
Documents have been identified for this request.
2. Any records discussing whether or not a private educational institution is authorized to participate in the FTB IIC program in general or specifically as to any private educational institution.
Documents have been identified for this request.
3. Any records regarding audits of any private educational institution by the Information Security Audit Unit (ISAU) or records of any unauthorized or suspected unauthorized accesses, uses, and/or disclosure (incidents) that involve a private educational institution.
Our office was not able to identify any responsive documents for this request. We suggest reaching out to the Department of Technology. <https://cdt.ca.gov/security/information-security-program-audit-services/>
4. Any records pertaining to the following entities and their use, or potential use, of the FTB IIC: Umass Global, the University of Redlands, Stanford Redwood City Campus, Notre Dame de Namur University, Vanguard University, University of Southern California, Stanford University, Association of Independent California Colleges, Pepperdine University, California Summer School for the Arts, California College of Podiatric Medicine, Point Loma Nazarene University, Stanford University, Monterey Institute of International Studies, John F. Kennedy University, Santa Clara University, University of LaVerne, Biola University, Whittier College, Loma Linda University, Loyola Marymount University, Saint Mary's College of California, La Sierra University, California College of the Arts, California Lutheran University, Azusa Pacific University, Pacific Union College, and Chapman University.
Documents have been identified for this request.
5. Any records of reversals by the entities listed in #4 or any other private educational institution.
It is possible that we may have documents responsive to this request, but will require more time to search.
6. Any records discussing California Government Code section 12419.9.

Documents have been identified for this request.

7. Any records discussing whether a private educational institution is authorized to receive offsets from funds other than tax refunds—in particular, from lottery or unclaimed property refunds.

Documents have been identified for this request.

8. Any records regarding subdivision (a) of Section 94760 of the Education Code and its applicability to the FTB IIC program.

The SCO was not able to identify any responsive documents for this item.

9. Any records regarding whether or not private educational institutions are able to submit accounts without a social security number.

The SCO was unable to identify any responsive documents for this item. We suggest contacting the Franchise Tax Board.

10. Any records regarding the priority that the FTB or the Controller afford to a private educational institution when requesting an offset vis-à-vis other creditors such as counties, city agencies, special districts, and state agencies.

It is possible that we may have documents responsive to this request, but will require more time to search.

If you have any questions in the meantime, please contact me via email at kchow@sco.ca.gov or by phone at 916-322-6432

Thank you,
Kimberley Chow



Kimberley Chow | Staff Counsel
Office of State Controller Malia M. Cohen
300 Capitol Mall, Suite 1850
Sacramento, CA 95814 | 916.322.6432

